

Draft - Saudi SCC (Controller-to-Processor Form) for the Anthropic Transfer

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Status: skeleton only. Source: HUMAN_CONFIRMATION_NEEDED.md C1/G11 - no SDAIA adequacy list exists, so every cross-border transfer of sensitive/health data needs an Appropriate Safeguard; Saudi SCCs (Controller-to-Processor form) is the one that applies to a third-party vendor like Anthropic (Binding Common Rules excludes third-party vendors).

Role note: this form is named "Controller-to-Processor," which per PDPL usually means the Saudi party is the controller transferring to a foreign processor. Whether that Saudi party is Taweed or the clinic depends on 04-controller-processor-determination.md - do not finalize this document until that's resolved.

1. Parties

- Data exporter (Saudi party): [COUNSEL TO CONFIRM - Taweed, or the clinic, per 04]
- Data importer (foreign party): Anthropic PBC (or its relevant contracting entity for API customers - confirm the exact legal entity name from Anthropic's own commercial terms, not assumed).

2. Description of the transfer

- Categories of data subjects: patients whose insurance claims are processed through the clinic's NPHIES submissions.
- Categories of personal data transferred: whatever subset of a ClaimResponse/EOB payload is included in an AI-2 (appeal-drafting) or AI-4 (EOB-extraction) request - [COUNSEL/ENGINEERING TO JOINTLY CONFIRM exact field list actually sent, not assumed from the schema]. Likely includes claim identifiers, denial-reason codes, and monetary amounts; should not include full patient demographic PHI beyond what's operationally necessary - confirm this against the real request payloads before finalizing, this is a factual/engineering question as much as a legal one. Explicitly flagged as sensitive/health data under PDPL - no lighter derogation applies (G12).
- Purpose of the transfer: AI-assisted appeal-letter drafting and EOB document extraction, as a processing step within the service Taweed provides to the clinic; no onward use, no cross-client training, no resale.
- Duration: transient, per-request - no persistent storage of PHI at the data importer beyond Anthropic's own API data-retention policy [COUNSEL TO CONFIRM current retention terms directly from Anthropic's commercial/DPA documentation, not assumed to still match what's cited in HUMAN_CONFIRMATION_NEEDED.md, which may be stale by the time of signing].
- Frequency: per clinic transaction, ongoing for the life of the contract with each clinic.

3. Safeguards / security measures at the importer

[COUNSEL TO CONFIRM against Anthropic's actual DPA/security documentation - do not draft this section from assumption]:

- Encryption in transit (TLS) and at rest.
- Access controls / least-privilege on API infrastructure.
- No training on API inputs by default (per Anthropic's standard API terms - verify current

wording at signing time, this is exactly the kind of vendor-facing detail that changes).

- Confirm whether Anthropic will execute its own DPA/BAA-equivalent as the importer-side commitment referenced by this SCC.

4. Sub-processing

Confirm whether Anthropic itself uses any sub-processors (e.g., underlying cloud infrastructure) that would make this a chain rather than a single hop - [COUNSEL TO CONFIRM current subprocessor list from Anthropic's trust/security documentation].

5. Liability and indemnity

[COUNSEL TO DRAFT] - standard SCC liability allocation between exporter and importer; align with whatever Anthropic's own commercial terms already state so this document doesn't create a conflicting obligation.

6. Term and termination

Tied to the underlying commercial relationship with Anthropic. On termination: confirm Anthropic's data-deletion commitment for any transiently retained data.

7. Governing law and dispute resolution

Saudi Arabia, per SDAIA's SCC framework requirements. [COUNSEL TO CONFIRM whether the official SDAIA-published SCC template - if one has been formally released beyond the Feb 2025 guideline - should be used verbatim instead of this custom draft; check dgp.sdaia.gov.sa for the current official form before finalizing, since regulatory drafting authority is the safer default here over Taweed's own or generic drafting.]

Open items before this can be signed

1. Resolve 04-controller-processor-determination.md - decides who signs as exporter.
2. Confirm whether SDAIA has published an official fillable SCC template (this should be checked fresh at drafting time - dgp.sdaia.gov.sa, since this area moves fast and a guideline from Feb 2025 may have been superseded by an actual form since).
3. Get the real field-level data inventory of what AI-2/AI-4 actually send to Anthropic, from engineering, before describing "categories of personal data" definitively.
4. Get Anthropic's current DPA/security/subprocessor documentation directly - do not rely on anything cited here as still-current by the time of signing.